

Civ. Pro.—Discovery, § 8.9.

Code of Civil Procedure section 2024.050 provides: “[o]n motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.”

As noted above, Plaintiff’s *ex parte* application to advance the hearing date on the Motion to Compel was denied by the Court. See Order entered October 29, 2025. No further order was otherwise granted by the Court to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date.

Even if the Plaintiff had properly sought to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date to pursuant to Section 2024.050, the Court, in the exercise of its discretion would deny it.

The Court has already determined that Plaintiff was dilatory in seeking to bring the matter before the Court, including in light of the overall procedural posture of the case. See Order entered October 29, 2025, p. 2.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is DENIED.
2. The Court shall issue the order after hearing.

Courtroom Clerk’s session

21. 10:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
JURY TRIAL 7 DAYS
FILED BY:
TENTATIVE RULING:

Parties to Appear.

22. 1:30 PM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**
FILED BY: LEONE, MISTY
TENTATIVE RULING:

Defendant and cross-defendant Misty Leone (“Ms. Leone”) filed a Motion to Compel Court Receiver Dan Harkins’ Disclosure of The Receivership Estate’s Accounts and Records on September 3, 2025 (the